

1606
Nov. 14

before to the Lo. Maior & Courte of Aldermen; to haue all ymprisonm^{te} accordinge to the Course of the Courte duringe the kinge's pleasure.

The Lord
Chancellor
moves that
Coke's anti-
quarian
information
be put in
the Order

'And the Lo. Chauncellor moued that forasmuche as the Lo. Cheife Justice of the Common place had taken greate paines & delyuered manye excellent things touchinge the kinge's intereste in matters of tinne, & those of greate antiquitie, whereof the worlde neuer tooke knowledge before, that one of the kinge's Counselle shoulde attende his beste leysure for the settinge them Downe, to the ende they may be inserted in the Order; w^{ch} the whole Cowrte lyked verie well of.

'Par Lo. Northampton. *nummus non gignit nummum, neque metallus metallum.* Par Lo. Chauncellor. *pater [sic] familias vendarem non emacem esse oportet*; otherwyse let him looke well to his stocke, for it will soone decaye.'¹

[p. 288]

FARWELL
v.
FARWELL

'The same daye vpon motion made of a reference of a bille wherein Farrwelle, an Atturtrie at the lawe, was pl. againste John Farrwelle, his sonne, of the Inner Temple, outer barrister.² The Lo. Ch. Justice Popham had certified that the Defendaunte had firste in the begynninge of his aunswere pleaded not guyltie, & afterwarde layes downe much impertinente matter, very scandalouse to his Father, & in no sorte materiall to the Causes Complayned of in the bille, & to this aunswere he had sette to his owne hande: & for this, by order of Courte, he was to be imprisoned, & not to be delyuered vntill he were bounde to his good behauyore, & had payde suche Fyne as the Cowrte shoulde ympose vpon him. And by waye of aduyse, the Lor. Chauncellor did admonishe all men to beware how there practise began vpon themselues, & that it is not fyte in good dyscretion to be of Counselle wth himselfe & in his owne Cause; men of iudgemente & discretion haue all-ways refrayned so to doe, for a man Can not looke into himselfe wth indifferente eies. Euerye man naturallie

Counsel
punished for
a scandalous
Answer

The Lord
Chancellor
advises
counsel not
to act for
themselves

¹ See Appendix XX.

² John Farwell of Holbrook,
Somerset. Admitted Nov. 1594;

called to the Bar 1603; Benchet
1620.

ys a louer of himselfe, & partiall in the iudgemente of himselfe.'

In Camera Stellata, Coram Consilio ibidem, Veneris, 7 Nouembr. 1606, adonque presente, Ellsemere, Lo. Chauncellor; Bankrupt,¹ archeuesque de Canterberie; Dorset, Lo. Tresorer; H. Hawarde, Lo. Northampton; Burleighe, Lo. Exeter; Zouche, Lo. Zouche; Vaughan, euesque de Londres; Popham, Ch. Justice; Koke, Ch. Justice; et Flemminge, Ch. Baron.

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'The Former Cause betwene the Ladie Russelle, pl., & the Earle of nottingham, formerlye referred to the Judges, was now this daye hearde one bothe sides againe.'²

LADY
RUSSELL
c.
EARL OF
NOTTING-
HAM
and others
Riot, etc.

'And the Judges did all wth Consente delyuer there opinions vpon the reference in there sentence, & would not before.

'The Lord Cheife Baron Cleered the Lo. Admirall from procuringe any Riote, for his Commaundemente was lawfull, & therefore he was Cleere, albeit the riote was subsequente. Sugden was onelye presente at the firste, & this vsage was no ryote, for the Lorde Admyrall had th'enheritaunce of the Castle, & the Ladie had onelye the Custodie to the vse of the Lo. Admirall, & her possessyon was my Lorde's possessyon; & therefore yf a seruaunte that keepe a howse will keepe his M^r out of possession, the M^r maye breake the howse, for he dothe not eiecte another out of possession. But the 2^d riote ys of greater difficultie, for the ladye hathe the Custodie of the parke, & yf the lodge were an auntiente lodge at the time of the pattente made, then it dothe apperteigne to the keper, as proper to the keper to haue a lodge. yf it apperteigne to the keper in pointe of intereste, then the 2^d was a ryote; but as the Case stoode, no restitution Could be graunted. And the Justice of peace³ did very discreatelye, for there was no

Fleming,
C. B.

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¹ A curious misspelling of Bancroft.

² See *ante*, p. 271.

³ Thomas Dolman.

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breache of the peace, therefore no Cause to binde any to the peace. He acquytte the Lo. Admirall, & that he had done honorablie & discreatelye. & he acquytte all the reste for the firste ryote, but he Coulede not acquite nor condemne them for the seconde ryote, because it coulede not appeare vnto them in iudgemente whether it were an auneyente lodge or no, nothings beinge mencyned wthin the bookes [depositions], (wherevpon they must onelye iudge), Concerninge the same.

Coke, C. J.

‘The Lo. Ch. Justice Koke agreede that the Lo. Admirall was not to be touchte wth any procuremente, nor any other, for the firste ryot: for the Lo. Admirall gaue a lawfull Commaundmente, & yf his seruaunte execute vnlawfullie, that shall not Charge him: but otherwyse it is of an vnlawfull Commaundemente, as I Commaunde my seruaunte to beate one, & he beatethe him vntill he kill him, this ys my faulte. The Ladye Russelle ys the Lo. Admirall’s seruaunte, & keper of his howse; yf he or his seruauntes breake the lockes or doores, it is noe wronge, for she hathe but the bare Custodie, for him & not againste him; & she hathe noe intereste, yf there be not an auntiente kepershippe & lodginge appurteigninge to that; for a Freeholde maye appurteigne to an office, as to the Fleete: but she hathe her salarie for her keepinge, 2^d ob. [2½d.] *per diem*, & shee ys *servus servi*.’ A man grants the keepership of a house or park, and the grantor destroys the house, or destroys the park, or disparks it, where is the keepership? *Erubescimus sine lege loqui*. 7 Edward VI., in Dier.¹

‘He Commended Dolman, the Justice of peace, & he did very discreatelye, for he had done iniustice yf he had graunted restitucion. A Justice of peace ys not bounde to gyue restitucion, but he maye yf he will: & so he freede him wth Commendacion *a poena et culpa*.

[p. 291]

‘For the 2^d ryote. for there number, there were 17; for there weapons, they had swordes & other weapons of offence; they vsed ill wordes, “kill them & hocke them”;

¹ Apparently the case of Lord Hil, 6 & 7 Edw. VI.; Dyer’s Reports, Willoughby v. Foster is referred to, i. fo. 80 b.

for the time, they kepte there three dayes & three nightes, & the time onelye may make a ryote greate. yf a man haue had a possession for three yeares, he maye keepe it wth force, but he Can not enter vpon his possession, *nec manu forti nec multitudine gentium.* 22 Henry VI., 14 Henry VII. a disseisee may not enter on the disseisor by force, notwithstanding he had 60 years possession. *Nihil vi faciendum*, for the law abhors force; *nihil magis contrarium legi quam vis.* 'But he Coulede neyther acquit nor Condemne them by Judgemente, for a Judge showlde not, neyther Can he, iudge accordinge to his owne pryuate knowledge, *mes secundum allegata et probata.* And the dryuinge of the Cattelle ys lawfull, for the keeper shall haue but the surplusage onelye, & it dothe not appeare that there was anye; & for this laste, he referred to the Common lawe to receyue a tryall there.

'Cheife Justice Popham agreede that the firste was no riote, neyther the seconde, that he Coulede Judge of: for a man may resiste wth force beinge in possession, but not enter wth force.' The keeper who has no grant of herbage and pannage shall have only the surplusage, and if he take agistment [*gisement*] or destroy the wood, it is a forfeiture.

Popham,
C. J.

Without inquiry, a Justice of the Peace cannot grant restitution, if he did not see the force; and the Sheriff ought to restore to possession.

Zouche and London agreed with the two Chief Justices.

Lord Zouche,
Bishop of
London

Exeter censured the second as a riot, and fined [them] £40 *pro exemplo.*

Lord Exeter

[p. 292]

'Northampton. the kinge by his prerogatiue maye take vp any howse in his progres. By the Ciuill lawe the wyues are fauoured in Cases of treason, *propter imbecillitatem sexus.*

Lord North-
ampton

'Lo. Tresorer acquites them all, & referres them to the lawe; for in iudgemente *quod dubites refeceris.*'

Lord
Treasurer

The Archbishop acquits them all.

Archbishop

'Lo. Chauncellor acquites the Lo. Admirall, & that he hathe Carryed himselfe honorable, & greate temper, & good respectes. But for the 2^d ryote, he woulde sentence it yf

Lord Chan-
cellor

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the wylnesses did agree wth in the bookes [depositions]. *Ideo liberavi animam meam.* euerye man ys to delyuer his Conscience: "I Cannot Cleere nor Commende Dolman, the Justice of peace, for yf he had done [well], vpon the sighte of suche an assembye, suche weapons, suche an occasyon, suche woordes, yf he had done well he shoulde haue bounde them all to the peace for most safetie."'

1606
Nov. 19, 21

In Camera Stellata, coram Consilio ibidem, Mercurij, 19 Nouembr., et Veneris, 21 Nouembr., 1606.¹

MORGAN
v.
MORGAN
and others
—
170 defend-
ants

' A greate Cause of hearinge betwene Edwarde Morgan, pl., againste Sr William Morgan,² & 170 other Defendauntes, a welche Cause: there ys a Crosse bille dependinge allso, that is to be hearde the nexte daye, againste as many defendauntes; & therefore it was formerlye ordered by the Courte that one bothe sydes they shoulde eyther make Choyce of 20 defendauntes a peece, & they shoulde onelye proceede againste them, to auoyde the drawinge vp so many dwellers so farre of from this towne.

20 to be
chosen

[p. 293]

' The Charge in the bille was that Sir W^m Morgan, beinge a Justice of peace & a greate man in his Cuntrye, vpon former malice & quarrelle wth Edwarde Morgan, had Caused a Challenge to be sente to the pl. & his sonnes, & againste a quarter Cessyons at Chrystemas, had sente & spoken to dyuerse of his Freindes & kinsemen to Come stronge to meete him at the Cessions; & therevpon he himselfe Came accompanied wth 40 men, some wth swordes, rapiers & daggers, steele Cappes, priuie Coates, Jauelins, & swordes & buckelers, & billes, & longe stauies, in so muche as the towne was full of weapons, & there Came 140 to assyste Sir Wylliam Morgan: The Defendaunte he alleaged that he, hearinge how the plaintifes meante to dysgrace him, Came thus prepared to defende himselfe, & that there was nothinge done, not a blowe gyuen: & that the pl.,

¹ Eight Councillors and Judges knighted by James I. at Whitehall, were present. July 23, 1603.
Sir William Morgan was

beinge a recusaunte,¹ did the nexte Sondaye after the Queene's Deathe, take the Cuntrye armoure, from the place where yt did vsuallye lye, home to his owne howse; w^{ch} the Defend^{te}, muche mislykinge, did labor to wthstande; w^{ch} was the Cause of the fyrste mallice: so vpon the whole matter, 2 entier dayes beinge spent in the hearinge of the Cause, the Courte seemed to be doubtfull what sentence to gyue, & differed in there sentence the one from the other. The 2 Ch. Justices, y^e Lo. Zouche, the twooe bishops & the Lo. of Northampton, iudginge but a small faulte, rather an error onelye, & wante of a litle good discretion; for his Comminge to y^e Cessyons he was bounde by his oathe, & for y^e wearinge of weapons by 4 H[enry] 7 & 24 H[enry] 8, they are all forfeyted to the Kinge, beinge wthin Wales, w^{ch}, as they thoughte, was punishement inoughe; & the Defendaunte a gentleman that had done good seruice in the Cuntrye, & the pl. a recusaunte, but otherwyse a man of honeste & Ciuill Conuersatyon; yet the sturringe of armor at suche a time was very ill, & mighte haue proued very daungerous, & the defend^{te} did well in seekinge to staye it as he did; yet because suche are the dispositions of the people in those partes that to gyue waye to theise thinges were very daungerous, & for example sake therefore, they fined the Defend^{te} 40^{li}, & many of the reste 20^{li} & 10^{li} a peece, & imprisonmente of course.²

' But the Lo. Chauncellor, the Lo. Tresorer & Secretarie [p. 294] Herberte were of an other opinion, & blamed the defend^{te} very muche, for that he was sworne to preserue & keepe the peace, & this sekinge to be greate & beare a side, in those Cuntryes especialle, ys very daungerous; & for his offence they fyned him 300^{li} markes [*sic*] & the reste of the defendauntes 20^{li} & 40^{li} apeece.'³

¹ 1605? Undated. Grant to Robert Hales of the recusancy of Edward Morgan of Swinnerton, co. Stafford. State Papers, Domestic, James I., vol. 17, No. 82.

² 1607, March 19. Licence to Edward Morgan to exercise his religion, paying £20 a month to the King. *Grant Book*, p. 25.

1610, March 4. Grant to John

Carse, Page of the Bedchamber, of £300, debts due to Edward Morgan, recusant, which ought to come to the King. Docquet.

³ This, being the sentence of the majority, would be the sentence of the Court.

⁴ See a cross bill between the same parties, *post*, p. 314.